CODE 5 — ON LEARNING AND COMPETENCES

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PRELIMINARY TITLE — FUNDAMENTAL PRINCIPLES

Art. 1 — Subject matter, legal nature and principles

1. This Code governs learning and the validation of competences as inalienable infrastructural commons, in accordance with Article 3.1 and Article 1.2, letter c), of the Constitution, concerning the right to education.
2. For the purposes of this Code:

   a) **learning:** means the process of acquiring knowledge, practical skills and capacity for judgement through experience, mentoring, teaching and documentation;

   b) **competence:** means the demonstrated capacity to carry out a task safely and in accordance with the applicable STVs, in a replicable, verifiable and transmissible manner;

   c) **Personal Portfolio:** means the individual, confidential and descriptive record of validated competences, of their limits and of the conditions for exercising them;

   d) **Competences Council:** means the technical body provided for by this Code, charged with organising learning pathways and validating competences in the cases assigned to it.
3. This Code guarantees every member access to the knowledge necessary to:

   a) satisfy vital needs;

   b) carry out a useful and safe Mandatory Base Contribution in accordance with Code 1;

   c) take part in deliberations in accordance with Code 3;

   d) contribute to the safety, resilience and continuity of their own Circle.
4. No competence may constitute a barrier to access to the Sufficiency Basket, a condition for the exercise of political rights or an independent ground for exclusion. Competence is an instrument of contribution and care and may not be used to create rent, extractive power or exclusion.
5. Knowledge relating to the Sufficiency Basket, health, energy, agroecology, habitat, safety and the Network is a common good. The prohibitions of patents, industrial secrecy, paywalls and critical proprietary dependency provided for by Article 5 of Code 2 shall apply.

CHAPTER I — RIGHT TO LEARNING, KNOWLEDGE STOREHOUSES AND VALIDATION

Art. 2 — Right to learning and duty of transmission

1. Every member has the right to lifelong learning and shall contribute, according to their own possibilities and competences, to the transmission of knowledge. The following principle applies: those who know teach, and those who do not know may ask to learn.
2. Learning ordinarily takes place through practical activity, the CBO, mentoring, laboratories, building sites, care, cooking, work in the fields and in the workshops, and facilitation. Training separate from practical activity shall be used where it is necessary and the reason shall be documented.
3. Time devoted to learning, teaching or documenting knowledge is recognised as CBO in accordance with Articles 4 and 5 of Code 1. Depending on its purpose, the training activity is classified:

a) in List B, where it is aimed at acquiring a specialist competence to be validated;

b) in List A, where it is necessary for immediate safety;

c) in List C, where it is free or responds to a temporary requirement.

4. No one may be excluded from learning pathways on grounds of age, gender, origin, physical condition, previous schooling or possession of formal qualifications. The competent Circle has the organisational responsibility for making the pathway accessible.

4-bis. The materials, tools and spaces necessary for the literacy provided for by Article 6, paragraph 8, and for the training necessary for safety form part of the Sufficiency Basket: access may not be made conditional on the CBO or on CdR. For other pathways, materials are supplied according to the availability of the Storehouses.

5. Failure to acquire or validate a competence may not entail a reduction of the Sufficiency Basket, exclusion from the Assembly, a sanction or any other detriment unrelated to the actual safety and competence requirements of the task.

6. No permanent role of teacher is provided for. Teaching is done by those who belong to a Competence Circle and are on a transmission shift. Every member of a Competence Circle shall devote at least twenty per cent of their own CBO to the transmission of competences, pursuant to Articles 6.3, 29.6 and 29.7 of the Constitution.

Art. 3 — Knowledge Storehouses, infrastructure and confidentiality

1. Every Storehouse governed by Code 1 shall have a Knowledge Storehouse, in physical and digital form, connected to the federated Network provided for by Code 7.

2. The Knowledge Storehouse shall contain at least:

   a) the STVs provided for by Code 2, used as primary teaching material;

   b) practical manuals, procedures, documented errors and lessons learned;

   c) audiovisual recordings of practical activities, only with the consent of the persons recorded and in compliance with the rules on data;

   d) an aggregate and anonymised map of the competences available and of the training requirements of the Circle;

   e) an anonymised archive of the outcomes of validations, intended for statistical, training and risk-prevention purposes.

3. The Knowledge Storehouse is accessible to the Community, tracked and replicated on community servers in accordance with Code 7. Validated knowledge necessary to satisfy vital needs or to guarantee safety may not be kept confidential for purposes of rent or exclusive control.

4. The map of competences and the Personal Portfolio shall be kept separate:

   a) the map is aggregated by function and field and describes collective requirements, without names or indications of shortcomings attributable to individual persons;

   b) the Personal Portfolio is confidential. It may be accessed by its holder, by the Competences Council for validation, by the Health Council where necessary for a safety aspect within its competence and by the Guarantee Circle in the event of an appeal;

   c) the publication of lists of names of persons lacking a competence or whose validation is suspended is prohibited.

5. The Management AI provided for by Code 7 may index the materials, propose training pathways, facilitate the matching of demand for and supply of teaching and flag aggregate shortcomings. It may not decide on suitability, replace human validation, draw up merit rankings or assign scores to persons.

6. The collection and use of data shall take place in accordance with Codes 6 and 7. No personal data shall be acquired or retained unless necessary for validation or for the protection of safety.

Art. 4 — Validation of competences and prohibition of extractive qualifications

1. In the Confederation, educational qualifications do not constitute, by themselves, a legal condition for accessing the CBO, taking part in deliberations, receiving resources or performing functions. Access to a task depends on the actual competences required and validated in accordance with this Article.

2. Validation is proportionate to risk and is structured in the following levels:

   a) **Level 1 — practical test:** self-description of the competence and an observable practical test before at least two competent persons. It applies to tasks of nil or low risk;

   b) **Level 2 — peer validation:** confirmation, on the basis of a practical test and of verification of the applicable STVs, by at least two persons validated at least at Level 2 in the same competence, including persons from other Communities, identified by the Competences Council; the Competences Council records the confirmation and decides on the change of level pursuant to Article 5, paragraph 3. It applies to tasks of medium risk;

   c) **Level 3 — qualified validation:** it applies to high-risk tasks. It includes, by way of example, competences in the fields of health, energy, structural building, the operation of vehicles, the use of plant protection products, critical Network systems and safety as governed by Code 14, as well as any other competence classified as high-risk in accordance with the STVs. Validation is carried out by the Competences Council on the basis of a documented test and of verification of the applicable STVs.

2-bis. In the Codes, L1, L2 and L3 denote Levels 1, 2 and 3 of paragraph 2; training at level L1, L2 or L3 is the pathway leading to the corresponding validation. For the purposes of paragraph 2, the risk of a task carried out in an activity classified in accordance with Article 1, paragraph 3, of Code 14 is nil for class R0, low for class R1, medium for class R2 and high for class R3; R4 activities are suspended and shall not be carried out until the risk has been reduced. The training required by Code 14 for safety is in addition to the validation of the competence provided for by this Article and does not replace it.

3. The outcome of validation shall be recorded in the Personal Portfolio in descriptive form and shall indicate at least:

   a) the activities that the person is able to carry out;

   b) the operating conditions in which they may carry them out;

   c) the limits of the competence;

   d) the date of validation;

   e) the validators;

   f) the STVs applied;

   g) the date of review.

The outcome shall not be expressed as a numerical mark or ranking and does not constitute a permanent qualification.

4. Validation shall consider at least:

   a) the capacity to operate safely;

   b) conformity with the STVs of Code 2;

   c) the replicability of the performance;

   d) the capacity to recognise an error and ask for assistance;

   e) the capacity to transmit to others the knowledge essential for operating safely.

5. Validation is subject to review, suspension or lapse in accordance with the following rules:

   a) lack of practice does not cause the automatic lapse of the competence, but may entail a temporary suspension of autonomous exercise and a request for practical updating;

   b) a Level 3 validation is suspended when the competence has not been exercised for more than twelve consecutive months;

   c) a Level 2 validation is suspended when the competence has not been exercised for more than

twenty-four months;

d) a Level 1 validation is not suspended merely for lack of exercise, but shall be verified when the task is resumed;

e) a Level 3 validation lapses if, twenty-four months after suspension, a positive review has not been passed;

f) a Level 2 validation lapses if, forty-eight months after suspension, a positive review has not been passed;

g) periodic review shall be carried out at least every two years for Level 3 and every four years for Level 2. For Level 1 no mandatory periodic review is provided for, except for verification before exercise where the STV or the operating conditions so require;

h) the review may confirm the validation, confirm it with an obligation of updating, suspend it pending updating or declare its lapse, stating reasons;

i) a positive review may maintain or reactivate a previously suspended validation, after verification of the necessary updating.

6. It is prohibited to make validation subject to the payment of a fee. For Level 2 and 3 competences, remote validation without a practical test is not permitted. For medium- or high-risk activities, self-description alone is not sufficient.

7. Refusal, suspension and lapse shall be reasoned and communicated to the person concerned, indicating the competences or operating conditions to be supplemented.

Art. 5 — Learning pathways and learning STVs

1. The ordinary pathway for acquiring a competence is structured, in a manner proportionate to the nature of the task, in the following stages:

   a) mentoring;

   b) supervised practice;

   c) autonomous practice, when authorised;

   d) capacity to teach or transmit the essential knowledge.

2. For every critical competence a learning STV shall be prepared, coordinated with Code 2, which shall indicate at least:

   a) the safety prerequisites and the PPE required;

   b) the stages of the pathway;

   c) the typical errors and the measures to prevent them;

   d) the verification criteria;

   e) the minimum mentoring time, where necessary;

   f) the equipment, conditions and supervision required.

3. Progression to a subsequent level shall be decided by the Competences Council on a proposal from the persons who carried out the mentoring, in accordance with the applicable validation criteria.

4. In the event of refusal, the Competences Council shall communicate written reasons, indicate the missing elements and propose a completion pathway within thirty days.

5. Abandoning a pathway does not constitute a violation and does not give rise to prejudicial annotations in the Personal Portfolio.

6. Failure to acquire a competence may not entail a reduction of the Sufficiency Basket or exclusion from the Assembly or from List A tasks that do not require that competence.

CHAPTER II — ORGANISATION, MINORS, PROHIBITION OF RENT AND GUARANTEES

Art. 6 — Minors and learning

1. Children’s learning takes place through participation in the life of the Circle, play, care, exploration and light and safe activities, in compliance with the rights of the minor and with Code 12.
2. No mandatory CBO may be assigned to minors, pursuant to paragraph 5. Until the fourteenth year of age is completed, only voluntary participation in learning activities is permitted, provided that it is appropriate to the age, not dangerous and supervised.
3. For minors until the fourteenth year is completed, the following are prohibited:

    a) competitive assessments;

    b) numerical marks and league tables;

    c) merit rankings;

    d) standardised selective tests;

    e) failing or exclusions based on performance.

Assessment is descriptive and considers what the minor is able to do, what they wish to learn, the supports they need and their interests, with their participation and that of the mentors.

4. From the age of fourteen and until the eighteenth year is completed, the minor may progressively access List B and C activities under the following conditions:

    a) for competences of nil or low risk they may carry out supervised practice, without this automatically entailing an autonomous validation;

    b) for medium-risk competences they may carry out supervised practice from the age of fourteen; autonomous exercise requires that they have reached at least the age of sixteen and the Level 2 validation;

    c) for high-risk competences, for which a Level 3 validation is required, autonomous exercise is permitted only from the age of sixteen and after the required validation has been obtained;

    d) before the age of sixteen it is permitted to learn high-risk competences exclusively through mentoring or supervised practice, without autonomous exercise and in compliance with the learning STV and with Code 14.

5. The CBO of minors is always voluntary and revocable. Participation requires the informed consent of the minor and the involvement of the Care Council, in compliance with Codes 12 and 14.
6. From completion of the eighteenth year the ordinary rules shall apply, including the measures of exemption, reduction or suspension provided for by Code 1. For a person who has grown up in the Confederation, the ordinary rules apply from the choice provided for by Article 26.4 of the Constitution or from the expiry of the related time limit; until then their CBO remains voluntary pursuant to paragraph 5, without the consent of the Care Council, and they retain the rights of a member.

6-bis. In implementation of Article 26.4 of the Constitution, at least three months before the eighteenth birthday the Competences Council, with the Care Council, informs the person who has grown up in the Confederation in writing of the three possibilities, of the time limit, of the rights of Article 4.8 of the Constitution and of the support for starting an autonomous life, and organises at their request the period of acquaintance with other Communities and with external realities. The choice is declared in writing to the Assembly of Circle 1 or recorded in the personal AI Node; the person may review it at any time. The time limit does not run until the information has been given.

7. Every minor learner shall be accompanied by three reference figures on quarterly rotation, belonging to different Competence Circles and not belonging to the minor’s family or Circle 0, pursuant to Article 29.3 of the Constitution. The figures shall be identified by the Competences Council with the participation of the minor.

8. By the eleventh year of age the literacy provided for by Article 29.4 of the Constitution shall be guaranteed: reading and writing, basic mathematics, use of local AIs, repair of a complex object, full-cycle cultivation of food, human and animal first aid and non-violent mediation. Validation shall take place by practical demonstration before persons designated by the Assembly of Circle 1, in descriptive form. If an attainment has not yet been reached, a support pathway shall be offered, without prejudicial consequences.
9. From the age of twelve, free access to the courses and building sites of all the Circles through the Network shall be guaranteed, within the safety limits of paragraph 4. The portfolio of the activities carried out replaces the diploma.
10. Until the fourteenth year of age is completed, the participation of the minor in the decisions that concern them shall be ensured by means proportionate to their age, defined by the Competences Council with the Care Council, pursuant to Article 26.2 of the Constitution.

Art. 7 — Competences Council

1. Every Circle 1 shall establish a Competences Council composed of three to seven members, with diversified competences validated at least at Level 2 or 3. It is the local branch of the Competence Circles for Childhood and Education and for Learning and Transmission of Knowledge.
2. The members shall be drawn by lot in accordance with Article 12-bis of Code 3, shall remain in office for one year and may not be drawn by lot again for the same Council until twelve months have elapsed from the end of their term of office.
3. The Competences Council shall perform the following functions:

   a) it shall maintain and update the Knowledge Storehouse;

   b) it shall organise mentoring and facilitate the matching of those who seek and those who offer teaching;

   c) it shall validate Level 3 competences and manage the related reviews;

   d) it shall guarantee non-discriminatory access to learning pathways;

   e) it shall report to the Storehouse Council and to the Assembly the training requirement useful for the planning of the CBO;

   f) it shall coordinate with the other Circles 1 the training relating to scarce competences.
4. The Competences Council has no allocative power over goods, does not exercise disciplinary powers, may not exclude a person from the Circle and may not reduce their access to the Basket.
5. The decisions of the Council shall be adopted in accordance with the consensus method provided for by Code 3 and shall be minuted. The criteria and the aggregate statistical data shall be published; names and Personal Portfolios shall remain confidential.
6. The members shall declare conflicts of interest and shall abstain when they take part in a validation that directly concerns them or when there is another reason that could compromise their impartiality.
7. An appeal pursuant to Article 9 may be brought against decisions of refusal, suspension or lapse.

Art. 8 — Prohibition of rent from competence

1. No competence may generate rent, a price premium, a differentiated wage, a monopoly of function, a right of exclusion or a political veto. The CdR recognises the contribution rendered beyond the CBO and its validated usefulness, not the competence possessed, in accordance with Article 8 of the Constitution and Chapter V of Code 1.
2. Scarce and necessary competences may entail an organisational priority in the allocation of the relevant CBO, a greater recognised mentoring time and logistical support for the transmission of knowledge. They do not confer material or decision-making privileges.
3. Those who possess a critical competence, in particular a Level 3 competence, shall contribute to its

transmission and documentation according to the requirement and their own possibilities.

4. Repeated failure to transmit without documented justification does not entail the automatic lapse of the validation. The Competences Council shall assess the case in a proportionate manner and may order, in ascending order:

   a) a reasoned reminder;

   b) a plan for recovering the transmission;

   c) a temporary suspension of the validation, where the omission compromises safety or the continuity of the competence;

   d) lapse, only as a last resort, where the omission is serious and repeated and has caused or may cause concrete harm to collective safety.

5. The following constitute possible justifications:

   a) absence of persons interested in learning;

   b) temporary impediment for reasons of health or care;

   c) documented CBO overload;

   d) lack of safe conditions for teaching.

6. Before adopting a measure pursuant to paragraph 4, the Council shall hear the person concerned and allow them to submit observations.

Art. 9 — Guarantees, appeal and systematic links

1. An appeal against refusal of validation, suspension or lapse may be brought before the Guarantee Circle within fourteen days of the communication of the decision.

2. An appeal is admissible exclusively on grounds of:

   a) procedural defect;

   b) manifest technical unreasonableness;

   c) discrimination;

   d) disproportion of the measure.

3. The Guarantee Circle does not directly validate the competence and does not assign a level in place of the Competences Council. It shall verify compliance with the procedure, the statement of reasons, the soundness of the criteria applied and the proportionality of the measure.

4. If the appeal is upheld, the Guarantee Circle shall refer the assessment back to the Competences Council for a fresh examination with different validators, identified in accordance with the guarantees of Code 4.

5. If the appeal is brought exclusively by the person concerned, the review may not make the contested measure more severe.

6. This Code is coordinated with:

   a) Code 1, in matters of the Portfolio, care, training and competences required for safety;

   b) Code 2, for the STVs and the prohibition of critical proprietary dependency applied to knowledge;

   c) Code 3, for the deliberative procedures and facilitation competences;

   d) Code 4, for the Guarantee, appeals and external review;

   e) Code 7, for the Network and the limits of the Management AI;

   f) Codes 12 and 14, for the protection of minors and safety.

7. The Personal Portfolio is established and governed by this Code. Code 1 may use its information, limited to what is necessary for the safe allocation of the CBO and without access to non-pertinent personal data.

Art. 9-bis — Access to pathways and revision after three refusals

1. No Council and no Competence Circle may refuse access to a learning pathway on account of the lack of an educational qualification or of aptitude. Refusal is permitted only for documented reasons of safety or of intake capacity and shall be communicated in writing, with the indication of an alternative pathway.
2. After three refusals of access to the same competence pathway, a revision shall be initiated ex officio, pursuant to Article 6.4 of the Constitution. The revision shall be entrusted to two uninvolved Communities drawn by lot in accordance with Article 36 of Code 4, each of which shall designate a person with relevant competence.
3. The revision shall be concluded within thirty days. It may order admission with a mentored pathway or confirm the refusal, stating reasons and indicating the conditions for a new request.
4. The revision may not produce prejudicial consequences for the person who requested access.

Art. 10 — Transitional provisions and continuity of safety

1. Qualifications, diplomas and certificates obtained before the entry into force of this Code shall be recorded, at the request of the person concerned, as documentation of a previous pathway. They do not automatically entail the validation of a competence.
2. In order to guarantee the continuity of services, those who are already exercising a high-risk critical function on the date of entry into force may receive a provisional validation:
    a) for a maximum of six months for Level 3 competences;
    b) for a maximum of twelve months for Level 2 competences.
3. Provisional validation is subject to:
    a) enrolment in the validation pathway within thirty days;
    b) practice supervised by persons already validated, where available;
    c) compliance with the STVs in force;
    d) tracking of the activities and of the supervision measures.
4. During the provisional period, the person may continue to perform the function within the limits defined by the continuity plan, but may not validate the competences of other persons.
5. Once the time limit has expired without the validation pathway having been started, the suspension provided for by Article 4, paragraph 5, shall apply. The suspension may not interrupt an essential service without an alternative: the technical necessity clause of Article 32 of Code 1 shall apply, in compliance with Codes 6 and 14.
6. For critical competences exercised for more than five years, the Competences Council may shorten the Level 3 validation pathway to the practical test, the verification of the STVs and a short period of mentoring, where safe and continuous practice is documented.
7. The documentation referred to in paragraph 6 may include registers of interventions, traceability, continuing training and positive peer assessments in accordance with the STVs. The mere absence of incidents does not constitute sufficient proof of competence.
8. Within twenty-four months of entry into force, every Circle 1 shall make a minimum Knowledge Storehouse operational and shall prepare the aggregate map of training requirements provided for by Article 3.